



POLICE DEPARTMENT

December 11, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202306511 (Incident Date: June 18, 2023) regarding Police Officer Kevin McDermott, Tax No. 968628 (PODS No. C-032120)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202306511, pertaining to Police Officer Kevin McDermott. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Police Officer McDermott would be detrimental to the Police Department's disciplinary process.

In this matter, Police Officer McDermott, a public safety officer, articulated sufficient facts to justify the stop of an individual. Specifically, Police Officer McDermott stated that he was drawn to the individual after observing him adjust his waistband on the right side and cup the waist area of his center sweatshirt pocket. At this point, Police Officer McDermott believed that the individual may have been carrying a weapon. Police Officer McDermott waited to approach, as he recognized that he was not able to identify anything specific at this time. As the individual walked past other officers, he repeatedly glanced over his shoulder and again adjusted his waistband area. Police Officer McDermott observed this behavior several times and then noticed a bulge in the front portion of the individual's waistband that he described as a flat line, similar to the slide of a firearm. Police Officer McDermott suspected that the bulge may be a firearm, either in the front of the individual's waistband or bottom pocket of his hooded sweatshirt as he was cupping and adjusting both areas. He further approximated the size of the bulge as five (5) to six (6) inches. Police Officer McDermott continued to observe the individual, who momentarily separated from his friends and stood behind a vehicle, again adjusting his clothing. Police Officer McDermott believed the individual used the vehicle as cover as he could not see the object the individual was handling. A short while later, the individual rejoined his group and Police Officer McDermott radioed other officers who were closer to stop the individual. He later joined the officers and frisked the waist and backside area of the stopped individual. He stated he focused on those areas because when the individual was moving behind the vehicle, he suspected he might be adjusting the firearm. Despite not feeling anything, Police Officer McDermott also searched the individual's pants pockets. After finding no weapon, the individual attempted to leave. Police Officer McDermott grabbed the individual's arm and

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detained him further, until finally allowing him to leave the location. He provided a business card, but did not explain the basis for the stop.

The Police Commissioner disagrees with CCRB that the initial stop and frisk of the individual were improper. Based on observations of Police Officer McDermott prior to the stop, along with Police Officer McDermott's experience with prior firearm arrests, he articulated sufficient facts to support a reasonable suspicion to stop the individual. The Police Commissioner does, however, believe that once Police Officer McDermott did not feel an item resembling a weapon during his frisk, any subsequent entry into the pockets of the individual was improper.

Therefore, as provided in the 2012 Memorandum of Understanding between CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice, and to retain jurisdiction over this matter, intends to impose no disciplinary action for the initial stop and frisk. Additionally, the Police Commissioner intends to direct the issuance of a ~~Schedule "B" Command Discipline~~ with a forfeiture of three (3) vacation days for the search, additional detention (stop) and not explaining the basis for the stop. Each three (3) day penalty is to run concurrent.

Sincerely,

A handwritten signature in black ink, appearing to read 'Anthony S. Marino', is written over a horizontal line. The signature is stylized with a large, sweeping loop at the end.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

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December 16, 2024

The Honorable Jessica Tisch
Interim Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case No. 202306511 (Incident Date: June 18, 2023) regarding Police Officer Kevin McDermott, Tax No. 968628 (PODS No. C-032120)

Commissioner Tisch:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated December 11, 2024, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent not to pursue Charges and Specifications against Police Officer Kevin McDermott for his unlawful stop and frisk of Prince Bates, the complainant in the herein matter. Pursuant to Paragraph 6 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department, I am responding to Deputy Chief Marino’s notification.

Deputy Chief Marino stated that after analyzing the facts and circumstances of this matter, you determined that Officer McDermott’s initial stop and frisk of § 87(2)(b) was proper based on Officer McDermott’s observations prior to the stop and his experience with prior firearm arrests. Consequently, you concluded you would retain jurisdiction over this matter, impose no disciplinary action for the initial stop and frisk, and direct the issuance of a Schedule “B” Command Discipline with a forfeiture of three (3) vacation days for the search, additional detention and not explaining the basis for the stop. Each three (3) day penalty is to run concurrently. CCRB disagrees with your determination.

Officer McDermott did not articulate sufficient facts to support a reasonable suspicion to stop and frisk § 87(2)(b). Officer McDermott provided the following reasons for the stop: (1) § 87(2)(b) repeatedly adjusted his waistband on the right side and cupped the waist area of his hoodie pocket; (2) § 87(2)(b) repeatedly glanced over his shoulder to see if the officers that were on patrol were watching him; (3) Officer McDermott noticed a bulge in the front right portion of § 87(2)(b) waistband consistent to the slide of a gun; and (4) § 87(2)(b) stopped behind a parked vehicle and continued to adjust his waistband.

None of these factors, individually or collectively, established individualized reasonable suspicion that § 87(2)(b) was involved in criminal activity or that he was armed and dangerous. First, as depicted by body worn camera footage, there were no observable bulges in § 87(2)(b) hoodie pocket or anywhere else in his clothing at the time officers stopped him, and as stated in the stop report and acknowledged by Officer McDermott in his statement to CCRB, the only object found in § 87(2)(b) pockets was a cell phone, which, under Floyd v. City of New York, 959 F.Supp.2d 540,

614, 631 n.489 (S.D.N.Y. 2013), does not create a suspicious bulge that would provide reasonable suspicion for a Level 3 Terry stop or frisk.

As for Officer McDermott's remaining asserted bases for the stop and frisk, the combination of § 87(2)(b) adjusting his waistband and cupping his hoodie pocket, looking over his shoulder at officers, and standing on the sidewalk behind a parked car at most provided Officer McDermott with founded suspicion of criminality that would have permitted him to conduct a Level 2 common law right of inquiry, but did not establish reasonable suspicion to conduct a forcible Level 3 Terry stop and/or frisk. Accordingly, Officer McDermott did not possess the reasonable suspicion required for a stop and frisk under New York law and the NYPD Patrol Guide.

While it is recognized that the Police Commissioner is the final arbiter regarding disciplinary actions against members of service, based upon the foregoing, the CCRB respectfully requests that you permit the disciplinary process against Officer McDermott to proceed.

Respectfully submitted,

Matthew Kadushin

p.p., Matthew Kadushin, General Counsel for
Jonathan Darche, Executive Director
NYC Civilian Complaint Review Board



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Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202306511 (Incident Date: June 18, 2023) regarding Police Officer Kevin McDermott, Tax No. 968628 (PODS No. C-032120)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated December 16, 2024, regarding the CCRB case involving Police Officer Kevin McDermott and nevertheless maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Police Officer McDermott.

Based on the totality of the facts cited in this case, including those facts in the Police Commissioner's December 16th, 2024 letter, Police Officer McDermott had reasonable suspicion to stop and frisk the individual. Police Officer McDermott cited specific characteristics and behaviors made by the individual that are consistent with an armed person. Upon making further observations, he additionally described how he saw a specific bulge at the individual's waistband with a flat line similar to the flat line of a slide of a firearm because the shape was similar to the front portion of a gun frame, where the slide is located. He suggested that it was five (5) to six (6) inches in length and concluded he had reasonable suspicion that the individual was concealing a firearm.

In light of the particularized facts of armed characteristics presented, there are New York cases of authority which must be applied to the analysis. Police Officer McDermott explained facts consistent with case law decisions which state that similar observations of specifically identifiable armed behaviors and the appearance of physical characteristics of an object indicating the distinct shape of a firearm establish reasonable suspicion to justify the stop and frisk for a weapon.¹ CCRB's reliance on People v. Crawford and People v. Gerard is misplaced, as in both of those cases, the officer only articulated an *unidentifiable* heavy *pocket* bulge, not waistband bulge, while the officer

¹ See, U.S. v. Hagood 78 F. 4th 570 (2nd Cir. 2023); People v. Hill, 287 AD2d 650 (2nd Dept. 2001); People v. Quan, 182 AD2d 506 (1st Dept. 1999); People v. Fletcher, 130 AD3d 1063 (2nd Dept. 2015); People v. Wright, 253 AD2d 720 (1st Dept. 1998); Matter of George G., 73 AD3d 624 (1st Dept. 2010).

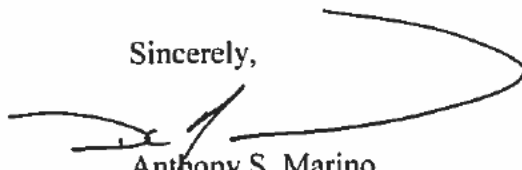
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in *Gerard* indicating clutching and pulling up on their pocket and blading the body towards the wall.² There, those courts correctly concluded that the officer was only at Level 2 Common Law Right of Inquiry and not Level 3 Reasonable Suspicion.³ Furthermore, CCRB mentions *People v. Taveras* where the First Department in 1990 held that *undefinable* pocket or groin bulges are not considered to be sufficient predicate for a frisk or search for a revolver, stating “*although defined bulges in the outline or configuration of a gun do warrant a frisk.*”⁴ Here, Police Officer McDermott details armed behaviors in addition to providing specificity that the waistband bulge he saw was resembling a flat line, consistent with the *slide of a gun*. The totality of these facts, and the noted repeated adjustments of the waistband, cupping of the waist area, glancing over his shoulders and stopping behind a parked vehicle in an effort to conceal his continued adjustment of his waistband, all provide evidence to establish reasonable suspicion to conduct a stop and frisk. The facts here are clearly distinguishable from the cases highlighted by CCRB, all of which reference situations of *undefined* objects and lack observed facts to support the reasonable appearance of a weapon.

Therefore, the Police Commissioner affirms her decision to exercise Provision Two of the Memorandum of Understanding and now directs the issuance of a Schedule “B” Command Discipline with the forfeiture of three (3) vacation days for the search, additional detention (stop) and not explaining the basis for the stop. Each three (3) day penalty is to run concurrent. Furthermore, no disciplinary action will be imposed for the initial stop and frisk.

Sincerely,



Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office

² See CCRB Investigative Memorandum at page 6.

³ See *People v. Crawford*, 89 A.D. 3d 422, 422 – 423 (1st Dept. 2011) and *People v. Gerard*, 94 A.D. 3d 592, 592 – 593 (1st Dept. 2012).

⁴ See *People v. Tavares*, 155 A.D. 2d. 131 (1st Dept. 1990). (citing *People v. Debour*, 40 NY2d 210 (1976) (Waistband bulges are considered to be indicative of a weapon))